

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DEVON HUNTLEY,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD OFFICER ADAM M.
ELMAADAWY, Shield No. 10563, NYPD POLICE
OFFICERS JOHN AND JANE DOES NUMBERS ONE
THROUGH TEN,

Defendant.

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SUMMONS

Index No.:

Plaintiff designates Kings
County as the place of trial.

The Basis of Venue is:
Location of Occurrence

To the above-named Defendant:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 7, 2020

Yours, etc.



Caitlin A. Robin, Esq.
Caitlin Robin and Associates, PLLC
Attorneys for Plaintiff
Devon Huntley
30 Broad Street, Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD OFFICER ADAM M. ELMAADAWY, Shield No. 10563, NYPD 71st Precinct,
421 Empire Blvd, Brooklyn, NY 11225

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

DEVON HUNTLEY,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER ADAM M.
ELMAADAWY, Shield No. 10563, NYPD POLICE
OFFICERS JOHN AND JANE DOES NUMBERS ONE
THROUGH TEN,

JURY TRIAL DEMANDED

Defendant.

----- X

Plaintiff, DEVON HUNTLEY, by his attorneys, Caitlin Robin & Associates, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of Defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York. On June 4, 2020, at approximately 11:00 p.m., Plaintiff Devon Huntley was subjected to an unlawful stop, frisk, search, detention, and false imprisonment by the defendant New York City Police Officers, while lawfully present in the vicinity of 320 Eastern Parkway, County of Kings, State of New York. Additionally, the Defendant Officers subjected Plaintiff to excessive force when they, amongst other things, punched, kicked, beat him with batons and pushed him to the ground causing him to suffer physical injuries and require treatment from ModernMD Urgent Care. Plaintiff was then unlawfully imprisoned at the 71st Precinct Police Station and Kings Central Booking for over approximately 24 hours until Plaintiff was arraigned in Criminal Court, charged with crimes he did not commit, and released on his own cognizance. Plaintiff was denied the right to due process and a fair trial until the resisting arrest charges against Plaintiff were dismissed and sealed on or about September 10, 2020. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, assaulted, battered, subjected him to excessive force, falsely arrested, falsely imprisoned, and denied Plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Devon Huntley is a resident of the State of New York.

3. POLICE OFFICER ADAM M. ELMAADAWY, Shield No. 10563, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. On the date of the subject incident, POLICE OFFICER ADAM M. ELMAADAWY, Shield No. 10563, was assigned to the 71st Precinct.

5. POLICE OFFICER ADAM M. ELMAADAWY, Shield No. 10563, is being sued in his individual and official capacities.

6. NYPD POLICE OFFICERS JOHN AND JANE DOES NUMBERS ONE THROUGH TEN, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. On the date of the subject incident, NYPD POLICE OFFICERS JOHN AND JANE DOES NUMBERS ONE THROUGH TEN, was assigned to the 71st Precinct.

8. NYPD POLICE OFFICERS JOHN AND JANE DOES NUMBERS ONE THROUGH TEN, is being sued in his individual and official capacities.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

12. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on December 2, 2020.

13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

16. On June 4, 2020, at approximately 11:00 p.m., Plaintiff was lawfully in the vicinity of 320 Eastern Parkway, County of Kings, New York when the Defendant Officers unlawfully stopped, questioned, frisked, and falsely arrested Plaintiff without probable cause or legal justification.

17. Plaintiff was returning home from working as an essential worker at Staten Island University Hospital.

18. As the Plaintiff exited the Subway at the Franklin Avenue Station a Black Lives Matter protest was occurring when the Defendant Officers suddenly, without any provocation or legal justification, forcibly grabbed Plaintiff and threw him down to the ground and began to punch, kick, beat with a baton, and force their knees into Plaintiff's back causing Plaintiff to suffer serious physical injuries to his face, head, eyes, body, and back.

19. As the cops viciously brutalized the Plaintiff, he informed the Defendant Officers that "I'm an essential worker coming home from work. My hospital ID is in my back pocket", to which the Defendant Officers responded, "I don't give a damn."

20. During this brutal assault, the Plaintiff notified the Defendant Officer that his knee was digging into his back and causing extreme pain, but the Defendant Officer responded "shut up n****" with complete disregard for Plaintiff's pain.

21. At no time prior to being stopped by the officers did Plaintiff commit a crime or behave in a manner that gave the police officers a reasonable and objective basis to believe he had committed or was committing a crime.

22. At no point in time did Plaintiff resist arrest in any way.

23. Plaintiff was then searched by Defendant Officers, and no contraband was found.

24. At no point did defendants recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiffs possession, custody, or control.

25. The Defendant Officers then unlawfully handcuffed Plaintiff, forcibly lifted him off the ground, placed him in the police vehicle, and began to transport him to the 71st Precinct against his will, where he was unlawfully photographed, fingerprinted and detained in a holding cell.

26. Thereafter, Plaintiff was transported to Kings Central Booking.

27. The Defendant Officers falsely stated to the Kings County District Attorney's Office that Plaintiff had committed a crime despite knowing that they lacked a legal and a factual basis to allege that Plaintiff committed any crime.

28. On June 5, 2020, at approximately 12:30 p.m., after over approximately 24 hours in police custody, Plaintiff was arraigned in Kings Criminal Court and the Judge released Mr. Huntley on his own recognizance.

29. Plaintiff was unlawfully charged with Disorderly Conduct, Obstructing Governmental Administration, Unlawful Assembly, Violations and Resisting Arrest.

30. Thereafter, on approximately June 6, 2020, after Plaintiff was released from custody, Plaintiff was forced to seek out medical treatment from ModernMD Urgent Care for the injuries inflicted by the Defendant Officers.

31. Plaintiff complained to the medical staff that his face, head, eyes, body, and back, among other things, were injured by the Defendant Officers.

32. All charges were subsequently dismissed and sealed against the Plaintiff on September 10, 2020.

33. As a result of the unlawful arrest and injuries inflicted by the Defendant Officers, Plaintiff was unable to work for three (3) days due to the incarceration and severe bruising to his face and head, and subsequently required to change from full-time to part-time employment due to ongoing injuries and complications.

34. Some of the Defendant Officers observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, false arrest, denial of fair trial, and excessive force used against Plaintiff.

35. The unlawful stop, question, frisk, search, false arrest, false imprisonment, unlawful seizure, denial of fair trial, and excessive force against Plaintiff by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION**Violation of Plaintiff's Fourth and Fourteenth Amendment Rights**

36. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.

37. The individually named police officer defendants while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

38. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, psychological, and economic injuries.

SECOND CAUSE OF ACTION**False Arrest and False Imprisonment**

39. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

41. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

42. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

43. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

44. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION
Unlawful Stop, Question and Frisk

45. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

47. The conduct of defendants in stopping, frisking, and searching Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

48. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

49. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

50. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION
Unlawful Search

51. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The illegal approach, pursuit, stop and search employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

53. Defendants lacked probable cause to search Plaintiff.

54. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

57. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION
Violation of Plaintiff's Fifth and Fourteenth Amendment Rights
Denial of Right to Fair Trial/Due Process

58. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein

59. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

60. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

61. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

62. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

63. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

66. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION**Negligence**

67. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. Defendants owed a duty of care to Plaintiff.

69. To the extent defendants claim that the injuries to Plaintiff by the Defendant Officers were unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by attacking and assaulting him.

70. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

71. All of the foregoing occurred without any fault or provocation by Plaintiff.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

74. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

SEVENTH CAUSE OF ACTION**Violation of Plaintiff's Fourth and Fourteenth Amendment Rights**

75. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

76. The use of excessive force by defendants by, amongst other things, forcibly grabbing Plaintiff and throwing him down to the ground and beginning to punch, kick, beat with a baton, and force their knees into Plaintiff's back constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

77. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION**Assault**

78. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

80. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

81. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

82. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

83. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

NINTH CAUSE OF ACTION**Battery**

84. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 83 with the same force and effect as if more fully set forth at length herein.

85. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner forcibly grabbed Plaintiff and threw him down to the ground and began to punch, kick, beat with a baton, and force their knees into Plaintiff's back, with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

86. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

88. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Malicious Prosecution

89. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein.

90. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

91. Defendants commenced and continued a criminal proceeding against Plaintiff.

92. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

93. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

94. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate Plaintiff's Fourth Amendment rights.

95. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

96. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

97. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

98. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 97 with the same force and effect as if more fully set forth at length herein.

99. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff, Devon Huntley. The acts and conduct of the defendants were the direct and proximate cause of injury and

damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

100. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

101. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

102. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

103. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

104. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELFTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

105. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 104 with the same force and effect as if more fully set forth at length herein.

106. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

107. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRTEENTH CAUSE OF ACTION
Failure to Intervene

108. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 107 with the same force and effect as if more fully set forth at length herein.

109. The defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

110. Defendants failed to intervene to prevent the unlawful conduct described herein.

111. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

112. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

113. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

114. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

115. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FOURTEENTH CAUSE OF ACTION
Deliberate Indifference to Medical Needs

116. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 115 with the same force and effect as if more fully set forth at length herein.

117. Defendants despite being aware that Plaintiff was suffering through severe back, shoulder, face and head pain while in their custody and required medication and treatment from medical professionals, they delayed Plaintiff's medical treatment and refused to administer and properly procure, immediate, and adequate medical attention.

118. The delay in medical treatment to Plaintiff's injuries resulted in permanent additional ongoing anxiety attacks suffered by Plaintiff that would have been prevented if Plaintiff received treatment in a timely manner.

119. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

120. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

121. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

122. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

JURY DEMAND

123. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff Devon Huntley demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
December 7, 2020

By: _____



CAITLIN A. ROBIN, Esq.
CAITLIN ROBIN &
ASSOCIATES PLLC.
Attorneys for Plaintiff
Devon Huntley
30 Broad Street, Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

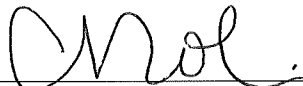
NYPD OFFICER ADAM M. ELMAADAWY, SHIELD NO. 10563, 421 Empire Blvd,
Brooklyn, NY 11225

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **CAITLIN ROBIN & ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein, I maintain my office.

DATED: New York, New York
December 7, 2020


Caitlin A. Robin